

Kranti Kumar Singh v. State of U.P.

Allahabad High Court · Division Bench · 2 May 2017 · Writ-C No. 18408 of 2017 · **Writ disposed; fresh 4.4 application to be decided in two weeks**

HEADNOTE

On the petitioner's request, a writ seeking a fresh electricity connection was disposed with liberty to apply again under clause 4.4 of the U.P. Electricity Supply Code, 2005. The concerned authority must consider and decide any such application within two weeks of presentation. No merits finding on entitlement to connection was made.

FACTUAL SUMMARY

Kranti Kumar Singh approached the Allahabad High Court seeking a fresh electricity connection. His counsel told the Division Bench that the petitioner would be satisfied if allowed to apply again to the third respondent with the documents contemplated by clause 4.4 of the U.P. Electricity Supply Code, 2005, and if that authority were directed to consider the application within a fixed time. Counsel for respondents 3 and 4 and the State Standing Counsel were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

fresh-connection-application

HOLDING

A consumer seeking a fresh electricity connection may apply afresh to the concerned authority with the documents contemplated by clause 4.4 of the U.P. Electricity Supply Code, 2005. If such an application is made, the authority shall consider and decide it within two weeks of presentation. The writ was disposed on those terms without directing that a connection be granted. ¶ 1

FLAG Cited as Section 4.4 of the Electricity Supply Code, 2005.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A FRESH ELECTRICITY CONNECTION ON MERITS

Disposed on the petitioner's request for liberty to apply afresh with a time-bound consider-and-decide direction; no finding on whether connection was due. ¶ 1